

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #3	CCRB Case #: 202002989	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 04/20/2020 3:30 PM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 10/20/2021	EO SOL 5/4/2022	
Date/Time CV Reported Mon, 04/20/2020 6:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/30/2020 1:07 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Giovany Diegue	03258	964489	062 PCT
2. POM Steven Konikoff	07038	958772	062 PCT
3. SGT Mohammad Amjad	05514	955716	CT LMSI

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sajjad Baloch	23161	962238	062 PCT
2. POM Juan Rodriguezpayano	10119	967668	062 PCT
3. POM Robert Henschel	21746	962468	062 PCT
4. POM Nobin Samu	16499	958046	062 PCT
5. POF Diandra Nunez	11235	966245	062 PCT
6. POM Marat Yermiyayev	15880	966404	062 PCT
7. POM Simon Wu	31714	966401	062 PCT
8. POM Navdeep Singh	10972	965530	062 PCT
9. POM Paulius Simulevicius	18796	959987	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Giovany Diegue	Abuse: Police Officer Giovany Diegue forcibly removed § 87(2)(b) to the hospital.	
B.SGT Mohammad Amjad	Abuse: Sergeant Mohammad Amjad forcibly removed § 87(2)(b) to the hospital.	
C.POM Giovany Diegue	Force: Police Officer Giovany Diegue used physical force against § 87(2)(b)	
D.POM Steven Konikoff	Force: Police Officer Steven Konikoff restricted § 87(2)(b)'s breathing.	

Case Summary

On April 20, 2020, Police Officer Kiely Tyrie of the 62nd Precinct filed this complaint with IAB via phone on behalf of § 87(2)(b) generating IAB Log #20-10739.

On April 20, 2020, at approximately 3:30 p.m., § 87(2)(b) called 911 and told the operator that he would commit an act of violence against the next black officer that he saw due to an altercation he had earlier in the day. § 87(2)(b) then returned to his block outside of § 87(2)(b) in Brooklyn after allegedly buying pet food for his cat. As he reached the block, two marked police vehicles allegedly stopped near him with their lights and sirens. Police Officer Sajjad Baloch and Police Officer Giovanni Diegue, both of the 62nd Precinct, approached § 87(2)(b) and allegedly began to ask him if he had called 911 and made statements during the call that he would shoot police officers at the 62nd Precinct stationhouse. § 87(2)(b) began to argue with the officers as several other officers arrived, all from the 62nd Precinct, including Police Officer Juan Rodriguez-Payano, Police Officer Robert Henschel, Police Officer Nobin Samu, Police Officer Diandra Nunez, Police Officer Marat Yermiyayev, Police Officer Steven Konikoff, Police Officer Simon Wu, Sergeant Mohammad Amjad, and Police Officer Navdeep Singh. PO Diegue called an ambulance to evaluate § 87(2)(b) (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). PO Diegue and PO Baloch handcuffed § 87(2)(b) and awaited an ambulance. § 87(2)(b) then became angry and called the officers “motherfuckers” among other profane statements. § 87(2)(b) then allegedly spat at PO Diegue and called him a racial epithet. PO Diegue then allegedly punched § 87(2)(b) in his chest (**Allegation C: Force, § 87(2)(g)**). Sgt. Amjad instructed the officers to arrest § 87(2)(b) in addition to removing him to the hospital. Once the ambulance arrived, the officers placed § 87(2)(b) on the stretcher and strapped him in it as he struggled and threatened the officers and EMTs. § 87(2)(b) spat at the officers and EMTs as the latter were preparing to take him to the hospital. While EMT § 87(2)(b) searched for a facemask, PO Konikoff pressed § 87(2)(b)'s baseball cap onto his face, causing § 87(2)(b) to say, “I can’t breathe,” (**Allegation D: Force, § 87(2)(g)**). PO Konikoff then immediately removed the hat and held it in front of § 87(2)(b)'s mouth, while leaving his nose free until EMT § 87(2)(b) could find the facemask. The officers and the EMTs took § 87(2)(b) to § 87(2)(b) in Brooklyn. The officers also arrested § 87(2)(b) for § 87(2)(b) (18 BR).

The investigation obtained body-worn camera (BWC) footage from Police Officer Baloch, Police Officer Diegue, Police Officer Rodriguez-Payano, Police Officer Henschel, Police Officer Samu, Police Officer Nunez, Police Officer Yermiyayev, Police Officer Konikoff, Police Officer Wu, Sergeant Amjad, and Police Officer Singh (01-17 BR).

Findings and Recommendations

Allegation (A) Force: Police Officer Giovanni Diegue forcibly removed § 87(2)(b) to the hospital.

Allegation (B) Abuse of Authority: Sergeant Mohammad Amjad forcibly removed § 87(2)(b) to the hospital.

Allegation (C) Police Officer Giovanni Diegue used physical force against § 87(2)(b) –

It is undisputed that on April 20, 2020, officers removed § 87(2)(b) to the hospital. § 87(2)(b) stated that he had trouble recalling the incident because he was “bugging out” due to taking over twice his normal amount of an amphetamine, Adderall (19 BR). He was not

clear if he took it recreationally. In his verified statement to the CCRB, § 87(2)(b) stated that on the incident date, he visited a pet shop without incident and bought food for his cat. He stated that he then walked home but stopped in a corner store and only bought cigarettes. After the corner store, as he continued walking home reached § 87(2)(b) in Brooklyn, approximately six unidentified officers drove up to him and instructed him to put his hands behind his back. The officers then handcuffed him. While he was handcuffed and standing against a wall, § 87(2)(b) felt his hands get sore from the handcuffs and complained to the officers to say that his hands were in pain, but the officers did not respond to him. The officers never explained to § 87(2)(b) the reason for their actions. § 87(2)(b) became angry and looked at PO Diegue. He spat at PO Diegue and called him the “n-word”. PO Diegue then allegedly punched § 87(2)(b) in his chest. § 87(2)(b) did not remember what happened after the punch but remembered that it made him lose his breath and cause him to have trouble breathing. He did not tell officers of this difficulty. § 87(2)(b) and the officers then waited as approximately eight more officers arrived followed by an ambulance that had two EMTs. The EMTs grabbed § 87(2)(b) by the arms and carried him to the ambulance and then took § 87(2)(b) to the hospital. He stated that no officers entered into the ambulance while he was inside. At the hospital, § 87(2)(b) was injected with a sedative and did not recall any further treatment.

The investigation was unable to obtain § 87(2)(b)'s medical records or ambulance reports because he did sign HIPAA forms despite several requests.

In his CCRB interview, PO Diegue stated that he and PO Baloch arrived at the location for a report of a dispute over food for a dog (28 BR). PO Diegue stated that he found § 87(2)(b) at the intersection mentioned in the 911 call, and when speaking with him, § 87(2)(b) identified himself as the 911 caller. During their conversation, PO Diegue noticed that § 87(2)(b) was speaking very quickly and rapidly and randomly changing his volume. PO Diegue asked § 87(2)(b) if he took medication, and § 87(2)(b) replied that he did but could not recall what it was. Finally, PO Diegue stated that he asked § 87(2)(b) for his identification so that he could check for a history of removals to the hospital, and the search yielded several positive results. PO Diegue then called for the ambulance because he believed that § 87(2)(b) appeared to be in mental distress and possibly intoxicated due to the aforementioned reasons. PO Diegue noted that these were the reasons for calling the ambulance with no further considerations. He also testified that § 87(2)(b) did not appear violent to him nor did he appear to be a danger to himself or others. PO Diegue did not remember § 87(2)(b) making any threats of violence against officers nor any contained in the original radio call.

Also, in his CCRB interview, PO Diegue stated that Sgt. Amjad and several other officers arrived due to hearing about threats to members of service (MOS) over the radio (28 BR). However, when the undersigned asked about the threats, PO Diegue again stated that he did not recall any threats to MOS being made over the radio. Once the other officers arrived, § 87(2)(b) became angry and threatened to go to Pennsylvania to buy guns to shoot NYPD officers. Sgt. Amjad then ordered that § 87(2)(b) should be arrested and handcuffed. PO Diegue and other officers he could not remember attempted to handcuff § 87(2)(b) but he made several racist remarks to PO Diegue such as calling him a “black monkey” and other remarks that PO Diegue could not recall. Sgt. Amjad then ordered PO Diegue to step away and let the other officers handcuff § 87(2)(b) and PO Diegue complied. He did not make any physical contact with § 87(2)(b) nor did he use any force or punch § 87(2)(b). After several minutes of waiting, EMTs arrived and the officers placed § 87(2)(b) onto a stretcher and into the ambulance. PO Diegue was assigned as the arresting officer and went to the hospital with § 87(2)(b).

In his CCRB interview, Sgt. Amjad stated that he arrived at the location after PO Diegue and PO Baloch and found them already conversing with § 87(2)(b) (30 BR). Sgt. Amjad recalled that the 911 call and the radio message mentioned that § 87(2)(b) had made threats of violence against black officers. Sgt. Amjad believed that § 87(2)(b) was intoxicated because he spoke erratically and with slurred speech when speaking with PO Diegue and PO Baloch while also

varying his volume and using racial epithets against PO Diegue. Sgt. Amjad believed that § 87(2)(b) was dangerous because he had already threatened officers in his 911 call and during the conversation with the officers had alluded to his connections to get weapons and attack the precinct stationhouse. He also asked PO Diegue to show him the “EDP” history for § 87(2)(b) and remembered that it had positive results. Furthermore, he testified that he instructed PO Diegue to call an ambulance, but then learned that PO Diegue had already requested one. Also due to the threats of violence against officers, Sgt. Amjad ordered that § 87(2)(b) be arrested and handcuffed. He could not remember which officers handcuffed § 87(2)(b). Sgt. Amjad did not see PO Diegue punch § 87(2)(b) while latter was being handcuffed. He did not see PO Diegue make any physical contact nor use any force against § 87(2)(b). Sgt. Amjad recalled that § 87(2)(b) used slurs against PO Diegue but could not recall specifics. Once § 87(2)(b) was handcuffed, they waited for an ambulance. Once the EMTs arrived, several of the officers placed § 87(2)(b) onto the stretcher and into the ambulance.

PO Konikoff § 87(2)(g) stated that did not witness PO Diegue punch or use physical force against § 87(2)(b) (BR 31). PO Konikoff did not know who called an ambulance, but he believed that § 87(2)(b) was a violent emotionally disturbed person because he threatened to “shoot up” the precinct stationhouse and was yelling constantly.

In his CCRB interview, PO Baloch did not recall the incident and was unsure who called the ambulance (29 BR). He remembered that § 87(2)(b) appeared, “agitated, aggressive, and combative,” but could not explain how. PO Baloch could not recall if an ambulance was called to the location. PO Baloch did not remember if PO Diegue ever punched § 87(2)(b) or used any physical force against him.

Throughout § 87(2)(b)'s call to 911 from NYPD Event § 87(2)(b) he makes several threats of violence against police officers, especially black officers. At the beginning of the call, § 87(2)(b) says that two black men stepped towards him at a pet shop and “put their hands on him.” However, almost immediately afterwards § 87(2)(b) begins an unrelated racist diatribe. At 00:50, § 87(2)(b) tells the dispatcher, “I will shoot one of your fucking black nigger cops. I know you’re black lady, I apologize to you, but he pushed me. If that nigger put his hands on me, I’ll go up to Pennsylvania, I got so many fucking shotguns, I will go back to that precinct and shoot one of these fucking niggers.” At 2:04, § 87(2)(b) says he would rather die than have a black man push him. At 2:59, § 87(2)(b) says, “You better make sure, I swear to God, I have the biggest fucking machete, I’m going to carry with me, and if you bring one of these fucking niggers. This happened about 5-6 years ago, I almost killed a nig—a black guy near my house. I lost control.” At 4:11, § 87(2)(b) tells the operator, “If there comes a black cop, it’s going to be me or him.” At 4:48, § 87(2)(b) says, “I have mental issues.” At 6:10, § 87(2)(b) says, “Look miss, either I die tonight or the cops die tonight.” At 6:42, § 87(2)(b) says, “Tonight I’m going to come back [to the precinct] and blow all the windows.” At 7:46, § 87(2)(b) tells the operator, “Miss I’m a fucking psychopath in the L-E-V-D. They should not do that to me. He put his hands on me. Miss when I go crazy you better send the fucking horror cops,” (27 BR). In his statement to the CCRB, § 87(2)(b) stated that nothing happened at the pet shop and never mentioned calling 911 (19 BR).

A request for a Threat, Resistance, and Injury Report returned negative results (21 BR). NYPD Complaint Report (UF61) #§ 87(2)(b) completed by PO Diegue states that § 87(2)(b) made terroristic threats to MOS after calling 911 and stated that he would bring shot guns and shoot at the 62nd Precinct stationhouse and blow himself up inside of it with a bomb (37 BR). Arrest report #§ 87(2)(b) also filed by PO Diegue notes the same information (18 BR). PO Diegue’s Medical Treatment of Prisoner Report for § 87(2)(b) notes that the latter was an emotionally disturbed person and was highly agitated (38 BR).

The incident is best shown in PO Baloch’s BWC footage contained in IA #44, except for the instruction and radio call for the ambulance which are shown in Sgt. Amjad’s and PO Diegue’s BWC respectively. The beginning of PO Baloch’s BWC video shows PO Baloch and PO Diegue

exit their vehicle and speak with a visibly upset § 87(2)(b) who states that he is on the phone with 911 (01 BR). He tells PO Baloch and PO Diegue at 01:00, “This is the situation before I break this phone, before I go crazy. I’m crazy enough. I have mental issues. You’re not going to take me to the hospital. That ain’t going to happen. They go in; they come back dead. You know what I’m saying? You want to check me for drugs? Go ahead...”. § 87(2)(b) then talks about his cats and a pet shop and an interaction with a black male. At 2:08, PO Baloch asks why he called 911, § 87(2)(b) replies, “He [referring to an unidentified person at the pet shop] shouldn’t do that. He was that guy wearing a mask. I hate niggers. I’m afraid of these people. You know what I’m saying? I grew up in an Italian neighborhood. It’s who I am.” PO Diegue and PO Baloch stand about 10 feet away from § 87(2)(b). At 02:35, PO Baloch asks § 87(2)(b) is he is a member of the service and he does not respond. PO Baloch asks if § 87(2)(b) is a civilian member of service. § 87(2)(b) does not answer the question. § 87(2)(b) says that he takes his cats and swings them against the wall and pulls their heads off. PO Baloch asks § 87(2)(b) again if he is a member of the police force because he told the dispatcher that there was “an MOS,” and he wanted to know if he was the member of the service. § 87(2)(b) does not answer the question. At 03:32, § 87(2)(b) says that he has mental issues and asks the officers if they want to take him to the crazy house.

At this exact point in the incident (corresponding to 3:32 in PO Baloch’s BWC), PO Diegue calls for the ambulance over the radio as seen in his own BWC located in IA#45 at 03:19 (02 BR). There is no discussion between PO Diegue and any other officer: PO Diegue calls for the ambulance on his own. At the same time of the incident, to the right of PO Diegue, Sgt. Amjad instructs PO Baloch to call an ambulance stating that § 87(2)(b) appears to be an EDP, as shown in Sgt. Amjad’s BWC in IA#53 at 00:44-00:53 (10 BR).

Continuing with PO Baloch’s BWC from 06:17 to 08:30, PO Baloch, PO Diegue and Sgt. Amjad check § 87(2)(b)’s “EDP history” in PO Diegue’s department phone. From the conversation, it appears that § 87(2)(b) had seven prior incidents with four prior removals to the hospital (01 BR). At 8:30, § 87(2)(b) says, “If I want to go crazy one fucking day, I’ll go to Pennsylvania, there’s a lot of guns my friends,” and Sgt. Amjad interrupts asking, “Do you have any guns on you?” § 87(2)(b) then pulls down his pants and says, “I’ve got no guns on me,” and pulls back up his pants, “if I want to get one, I’ll go to Pennsylvania and get one. I got nothing on me [lifts his shirt],” (01 BR). At 8:54 in his BWC, PO Baloch walks over to Sgt. Amjad and tells him, “Seven prior. Four EDP history and one resisting arrest.” § 87(2)(b) then tells the other officers in the background as he steps towards them, “I never disrespect cops. But then they push me.” PO Baloch tells § 87(2)(b) to back up to the wall, and § 87(2)(b) responds, “Alright, but that guy [PO Diegue] can’t put his hands on me because he’s a big fucking nigger.” Someone offscreen tells § 87(2)(b) that there is no need for that, but he responds, “There is a need for that. I did nothing wrong. But the guy is being a wise guy. I did call the cops. All I did was explain to the lady because you guys here are—if I tell you, you ain’t going to get nothing. You think you’re going to drag me to the hospital? You’re crazy,” (01 BR).

At 09:56, PO Baloch walks up to § 87(2)(b) and asks, “Alright, § 87(2)(b) do you by any chance have thoughts of hurting anybody or hurting yourself?” § 87(2)(b) responds, “No, I’ve never hurt anybody in my life. Never, never, never.” PO Baloch asks him, “Have you ever been to a psych before?” § 87(2)(b) says, “The other day I was bugging out. Have I been to a psychiatrist before? Yeah.” PO Baloch asks how many times. § 87(2)(b) responds that he had been a couple of times. PO Baloch asks if § 87(2)(b) had a history of suicide? § 87(2)(b) responds negatively. PO Baloch asks if he has ever tried to kill himself in the past. § 87(2)(b) says, “Not really. Why should I kill myself? Let me ask you something officers, if I want to kill myself? I go straight to hell,” (01 BR). Then at 10:54, PO Baloch says, “Cuff,” and walks towards § 87(2)(b) while PO Konikoff grabs § 87(2)(b)’s left arm. PO Baloch tells § 87(2)(b) to put his hands behind his back. § 87(2)(b) says, “Yeah.” PO Konikoff turns § 87(2)(b) toward the wall. PO Diegue places the handcuffs on § 87(2)(b) as PO Konikoff tells § 87(2)(b) “This is just for safety.” PO Diegue adjusts the handcuffs as § 87(2)(b) says, “Don’t tighten them please.” PO Baloch

responds, “They’re not tight.” PO Baloch tells him, “I’m just going to double lock it,” and does so. PO Konikoff holds § 87(2)(b) s right arm, and PO Diegue holds the left. Once the handcuffs are double locked, PO Baloch tells § 87(2)(b) that he can turn around and he does so. PO Baloch tells § 87(2)(b) “Stay right there,” (01 BR).

As they wait, PO Diegue stands by § 87(2)(b) with PO Baloch. At 12:55, § 87(2)(b) says, “1995, you [PO Diegue] allowed to come to this neighborhood? You know you weren’t allowed to come to this neighborhood.” § 87(2)(b) then turns to PO Baloch and PO Diegue, and says, “I’m the one who made the phone call.” PO Baloch tells PO Diegue to not answer him. At 13:35, § 87(2)(b) says, “I made a phone call because a fucking nigger like him [points to PO Diegue from behind his back, due to the handcuffs]. He pushed me. I’m fucking sue that cop. For no reason. These niggers.” PO Diegue does not touch § 87(2)(b) (01 BR).

At 14:12, § 87(2)(b) walks up toward PO Konikoff and leans into his face saying, “Let me tell you something my man. Let me tell you something.” PO Konikoff extends his right arm and places it onto § 87(2)(b) s chest, applying light pressure with his fingertips and walks § 87(2)(b) back to the wall. PO Diegue walks up and stands in front of § 87(2)(b) § 87(2)(b) says to PO Konikoff, “It’s going to be on you. Yeah, punch me in my face. Go ahead.” PO Konikoff responds, “I’m not going to punch you.” § 87(2)(b) says, “I want to sue one of you. Go ahead. Take your hands off me. [At 14:27, turns directly to PO Diegue] Look I got a fucking nigger. You’re a fucking nigger.” PO Konikoff quickly grabs § 87(2)(b) s left arm and moves his other hand from § 87(2)(b) s chest to his right arm and then turns § 87(2)(b) to face the wall but does not push or punch him. PO Baloch tells him, “No, no, don’t. Listen, stop,” and grabs § 87(2)(b) s left arm. § 87(2)(b) says, “Yeah you’re all fucking niggers. I hate fucking hate niggers.” § 87(2)(b) continues, “I swear to God man. I’m going to break his fucking windows right in front of you. I’m going to give you all flat tires.” (01 BR).

At 15:09, § 87(2)(b) attempts to twist to the right, saying, “Let me tell you something!” PO Baloch tells § 87(2)(b) to stop and applies pressure with his right forearm to turn § 87(2)(b) back to the wall. § 87(2)(b) says, “I’m not scared of you; listen you fucking monkey.” PO Diegue’s hand then presses against § 87(2)(b) s back, but he does not push or punch § 87(2)(b) PO Baloch tells § 87(2)(b) to stop. § 87(2)(b) states that he will stop (01 BR).

At 15:25, § 87(2)(b) hits his own head against the wall nine times, three short groups of three, saying, “The head! The head!” PO Baloch asks, “Why are you doing this bro?” § 87(2)(b) says, “Take that fucking nigger off me,” even though PO Diegue is doing nothing. PO Baloch says, “Ok, ok, Diegue leave it.” PO Diegue removes his hand from § 87(2)(b) s back. § 87(2)(b) jerks his shoulder back, while PO Baloch says, “He’s off. He’s off.” PO Konikoff tells § 87(2)(b) “He’s not on you.” § 87(2)(b) continues to call PO Diegue a monkey and says, “Yes he is touching me. He’s sticking his dick in my ass. The fucking nigger. I’m going to say nigger, nigger inside the hospital. Get my hands loose in the hospital. [16:13] I’m going to stick that gun up your fucking ass, you fucking nigger. Let me tell you, why don’t you go act in your neighborhood. You’re a pussy in your neighborhood, bro.” Once this exchange finishes, an ambulance arrives and the officers place § 87(2)(b) into the ambulance without incident. At no point during the interaction does PO Diegue punch § 87(2)(b) (01 BR).

The rest of the BWC footage is consist with PO Baloch’s footage, but it does not have as good of an angle (02-17 BR).

§ 87(2)(g)

§ 87(2)(g)

Contrary to PO Baloch’s statement in the BWC, § 87(2)(b) did not tell the operator he was a member of service. § 87(2)(g)

§ 87(2)(g)

According to NYPD Patrol Guide Procedure 211-13, an emotionally disturbed person is a person who, “appears to be mentally ill or temporarily deranged and is conducting himself in manner which a police officer reasonably believes is likely to result in serious injury to himself or others.” It further instructs officers to take the emotionally disturbed person “into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others,” (25 BR).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (D) Force: Police Officer Steven Konikoff restricted § 87(2)(b)'s breathing.

§ 87(2)(b) did not make this allegation and it is being pleaded based on the BWC footage (13 BR).

In his CCRB interview, § 87(2)(b) stated that in the ambulance, he began to act “very crazy” but when asked what that meant, he stated that he could not remember. § 87(2)(b) knew that he screamed “fuck you” to the EMTs, but they did not say anything to § 87(2)(b) the entire time. § 87(2)(b) did not remember what happened after he was placed in the ambulance nor during the ride to the hospital (19 BR).

The investigation, through the assistance of § 87(2)(b) identified one of the EMTs as EMT § 87(2)(b). EMT § 87(2)(b) is no longer employed by § 87(2)(b) and was unavailable for the investigation after multiple contact attempts (34 BR). His partner was not a witness to the events in the ambulance (13 BR).

In PO Konikoff's second BWC footage, located in IA #56, at 00:33, PO Konikoff walks around the side of the ambulance and enters it (13 BR). He holds § 87(2)(b)'s head by the top of his head and by his temple while PO Baloch works on tightening the restraints on § 87(2)(b)'s arms. PO Yermiyayev holds § 87(2)(b)'s feet and attempts to tie a restraint around his legs. EMT § 87(2)(b) searches through the various shelves of the ambulance. § 87(2)(b) twists his body and makes several jerking motions with his torso to sit upward. At 00:52, PO Konikoff turns § 87(2)(b)'s head toward the ambulance wall, away from the officers and EMT § 87(2)(b) and presses down § 87(2)(b)'s baseball cap. At 00:56, the EMT reaches over § 87(2)(b) and attempts to find something on the shelves but does not find what he is looking for and turns around. As the sound

begins at the minute mark, PO Konikoff says, "No spitting!" keeping his hands on § 87(2)(b)'s hat, pushing it down as § 87(2)(b) says, "I'll spit in your mothers...[inaudible]. At 1:06, § 87(2)(b) says, "Move, I can't breathe!" with a muffled voice. At 1:08, PO Konikoff, "Alright, so stop spitting," and he removes the hat from § 87(2)(b)'s face and head. § 87(2)(b) says, "Alright, I'm not going to spit." PO Konikoff repeats himself and says, "Stop spitting," and he then places the hat in front of § 87(2)(b)'s mouth. § 87(2)(b) says to EMT § 87(2)(b) "I'll spit, you fucking spic! You're a spic." At 1:14, EMT § 87(2)(b) then places a mask (grabbed at 1:10 off the left corner of the frame) over § 87(2)(b)'s face as PO Konikoff removes the hat. § 87(2)(b) says, "You're a fucking spic man." EMT § 87(2)(b) responds, "Yeah I am, thanks." § 87(2)(b) says, "You're a fucking spic. You don't deserve to be in this country man," and continues to use race-based language and threaten to kill EMT § 87(2)(b) while they secure him.

The other BWC videos do not show this interaction because all the other officers except for PO Baloch were not in the ambulance with PO Konikoff (02-17 BR). PO Baloch, who ended up re-entering the ambulance, stopped his recording once officers placed § 87(2)(b) into the ambulance and as such does not capture the events that occurred afterwards (01 BR).

In his CCRB interview, PO Konikoff stated that once officers and EMTs placed § 87(2)(b) on the stretcher, they tied the arm and leg restraints on § 87(2)(b) due to his constant movement (31 BR). Once in the ambulance, § 87(2)(b) began to spit at the officers and EMTs. PO Konikoff entered the side of ambulance because § 87(2)(b) began to try to get out of the restraints and shout threats at the EMTs. PO Konikoff stood behind § 87(2)(b) while he continued to spit at the EMTs. EMT § 87(2)(b) tried to grab a mask from the supplies but appeared to be having trouble finding one. PO Konikoff could not remember if there were other officers in the ambulance assisting. Since § 87(2)(b) continued to spit, PO Konikoff pressed § 87(2)(b)'s baseball cap downward over his face so that it would cover his mouth. § 87(2)(b) then stated aloud that he could not breathe, so PO Konikoff immediately removed the hat and then placed it in front of § 87(2)(b)'s mouth, deliberately leaving the nose free to breathe, so that § 87(2)(b) would stop hitting the EMT § 87(2)(b) with spit while still being able to breathe. EMT § 87(2)(b) finally found a mask and was able to place it over § 87(2)(b). Once EMT § 87(2)(b) placed the mask onto § 87(2)(b), PO Konikoff left the ambulance. He did not have any further interaction with § 87(2)(b). Finally, PO Konikoff explained that to his knowledge, when someone in police custody begins to spit at officers, the protocol is to procure a mask for the individual. If there are no masks, then the officers must block the mouth area. PO Konikoff stated that he initially pushed the hat downward to be quick with it to block the spitting as an immediate reaction and that there was no intent to prevent § 87(2)(b)'s breathing. He also cited that he was concerned about the possibility of Covid-19 transmission from the spit.

PO Baloch did not remember the incident: he did not specifically recall § 87(2)(b)'s spitting nor PO Konikoff's use of § 87(2)(b)'s hat to prevent it (29 BR). Neither Sgt. Amjad nor PO Diegue were witness to this part of the incident nor did they recall it (30, 28 BR).

§ 87(2)(g)

NYPD Patrol Guide Procedure 221-01 prohibits officers from applying any pressure to the throat or windpipe or preventing and hindering breathing (32 BR). NYPD Patrol Guide Procedure 221-02 instructs officers to "apply no more than the reasonable force necessary to gain control" and to "position the subject to promote free breathing as soon as safety permits," (33 BR).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**22 BR**).
- PO Diegue has been a member of service for three years and has been a subject in three CCRB complaints and four allegations, of which one was substantiated.
 - 201908401 involved a substantiated allegation of physical force against PO Diegue. The Board recommended Command Discipline A, and the NYPD discipline is still pending.
 - § 87(2)(g)
- Sgt. Amjad has been a member of service for seven years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Konikoff has been a member of service for six years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of March 9, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**36 BR**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 3

Investigator: Michael Miskovski Inv. Michael Miskovski 09/21/2021
Signature Print Title & Name Date

Squad Leader: Olga Golub IM Olga Golub 09/21/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date